

Mitsue Project — Lawyer Meeting Questions (English Version)

Company Structure and Legal Forms

1. 一般社団法人 vs NPO法人 :

- What are the actual advantages of 一般社団法人?
- When is the optimal time to convert to NPO法人 in 5 years?
- What is the procedure for transitioning from 一般社団法人 to NPO法人?

2. Company Structure Design :

- What are the legal risks and benefits of board composition (1 person vs 3 people)?
- What is the recommended structure for defining each director's responsibility boundaries?
- How can fair conflict-of-interest policies be developed?

3. Shareholders and Directors Overlap :

- Can shareholders become directors? Is that wise?
- Does overlapping directors and shareholders affect future NPO法人 transition?

Legal Compliance and Regulations

4. Post-establishment regulatory requirements :

- What documents are not required for 一般社団法人?
- What tax office filings must be submitted within deadlines?
- What legal procedures must be conducted annually?

5. Permits and Licenses :

- What licenses are required for project early-stage activities?
- What licenses are required for forestry business?
- What licenses are required for EV charging facilities?

6. Industry-specific legal requirements :

- What legal requirements exist for data center business?
 - What legal requirements exist for forestry business?
 - What legal considerations exist for village government partnerships?
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Tax and Financial

7. Tax-related :

- What are the tax benefits of 一般社団法人?
- Is NPO法人 conversion actually beneficial for tax-deductible donations?
- How are carbon credits from forestry restoration projects treated for tax purposes?

8. Accounting and Reporting :

- What accounting systems are commonly used?
 - What is the minimum level of financial reporting required by law?
 - When are auditors required?
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Governance and Risk Management

9. Governance Structure :

- What is the commonly used by-default board composition?
- What are the commonly used by-default policies and procedures that need to be documented?
- What are the general role boundaries between directors and employees?

10. Risk Management :

- What are directors' general legal responsibilities?
 - How should conflicts of interest be handled?
 - How can common litigation risks be mitigated?
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International and Project-Specific Requirements

11. International Elements :

- Can foreigners (including Rob) become directors?
- What are the legal issues with funding from overseas donors?
- What is the legal structure for overseas partners?

12. Mitsue Project-Specific Legal Issues :

- How does partnership with Mitsue village government affect responsibility and governance?
 - What legal requirements exist for forestry restoration business beyond general corporate law?
 - What legal requirements exist for data center business?
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Practical Operational Questions

13. Daily Operations :

- What document management systems are commonly used?
- How should board meeting records be maintained?
- What are the legal requirements for employees (if any)?

14. Funding and Contracts :

- Are there differences between NPO法人 and 一般社団法人 for grant applications?
 - What is the general legal advice regarding receiving donations from corporations?
 - What are common contract terms?
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Transition and Future Planning

15. Future Growth Planning :

- What is the approximate cost for converting to a general NPO法人?
 - What is the outline of a 5-year financial report?
 - How do the four pillars (forest restoration, energy, data center, EV charging) function as an NPO?
 - What are the key financial targets to achieve by Year 5?
 - How much is needed by Year 5? By Year 5, expenditure reaches 60% of revenue margin — how much is needed by Year 5?
 - What is the approximate capital recovery period for mixed funding (grants vs. loans vs. revenue)?
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Practical Advice

16. Professional Support :

- What is the price range for administrative scrivener and lawyers?
 - Should administrative scrivener be hired even if the project is not yet operational?
 - What type of legal counsel is appropriate for this project's size and scope?
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Follow-up Questions

17. For Deeper Understanding :

- A friend works for a law firm in this field. Should I collaborate with them for more detailed advice?
 - Should I use a startup-focused law firm or a company law specialist?
 - Can you teach me the best practices for starting a business in Japan?
 - What are Japan's startup best practices?
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Advice

1. **Organize questions by category** for your lawyer to distribute
 2. **Focus on project-specific questions** (forest restoration, EV charging, data center)
 3. **Balance time and cost** - some questions require more detailed legal consultation
 4. **Create a follow-up question list** for after the initial meeting
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